

**BEFORE THE FEDERAL MARITIME COMMISSION**

**Docket No. 24-19**

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**PELTON INTERACTIVE, INC.**

**v.**

**FLEXPORT INTERNATIONAL LLC**

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**RESPONDENT'S RESPONSE TO COMPLAINANT'S PETITION FOR EXTENSION OF  
DEADLINE TO FILE EXCEPTIONS**

**COMES NOW**, Respondent, Flexport International LLC, by and through its undersigned counsel and files this, its Response to Complainant's Petition for Extension of Deadline to File Exceptions and in support thereof states as follows:

Complainant has not shown good cause as to why it needs sixty (60) days to reiterate their arguments which they have repeatedly briefed. To be clear, Complainant has already briefed these same arguments *ad nauseum* – in its complaint, amended complaint, multiple motions and responses thereto, in its Brief and its Reply Brief.

Further, counsels for Complainant have briefed these exact same argument in multiple cases before the Commission over the last five (5) years – including exceptions to Initial Decisions entered against their clients for which they did not need additional time.

Complainant's argument that the size of the factual record does not provide good cause – rather, it indicates that the parties have already analyzed the record before filing their briefs.

Equally unavailing – and perhaps even more so – is Complainant's argument that the Initial Decision "addresses complex and contested legal issues." However, Complainant's arguments were soundly (and repeatedly) rejected by the Commission before the Initial Decision was entered and, indeed, before the initial brief was filed.

That is, Complainant argued, in summary:

1. That “store door” terms forecloses the ability of a carrier to impose D&D.
2. That a container-by-container analysis was not required; and
3. That proximate cause for each charge, linked to each container, does not need to be proven but rather the burden shifts to Respondent to show that each such charge was not a violation of the Shipping Act.

These arguments were all outright rejected by multiple Presiding Officers and the Commission. *See TZ SSE Buyer, LLC, v. Yang Ming Marine Transport Corp.*, FMC Docket No. 24-10 (Doc 36: Final Decision April 24, 2025); *Visual Comfort & Co. v. COSCO Shipping Lines Co., Ltd*, FMC Docket No. 24-01, (Final Decision, May 29, 2025); *Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. S 41102(c)*, FMC Docket No. 21-09, (Doc 32: Initial Decision, April 22, 2022). *Samsung Electronics America, Inc. v. ZIM Integrated Shipping Services Ltd.* FMC Docket No. 22-30 (Doc 60: Initial Decision April 22, 2025); *Samsung Electronics v. SM Line Corp.* FMC Docket No. 23-01 (Doc 148: Initial Decision May 28, 2025; Doc 157: Final Decision August 13, 2026).

Moreover, counsels for Complainant were well aware of these rulings, since they were on the wrong side of the *Samsung* decisions.

Nevertheless, Complainant arrogantly insisted that their arguments were valid despite the clear precedent they deliberately ignored. This is not surprising. As set forth in numerous submissions in this litigation, it has always been Complainant’s position that it did not have any obligation to identify a single charge or the reason it violated the Shipping Act.

The Initial Decision could not possibly have come as a surprise to Complainant’s counsel,

particularly in light of the recent rulings which expressly rejected their arguments. *See ZIM* and *SM Line*, *supra*. Complainant and its counsel thus have had years to formulate their arguments – there is no possible amount of time which would be needed for them to “analyze” the ruling. Complainant’s counsels (8 attorneys of a 2,200 attorney firm) are highly familiar with Commission practice and have ample resources to comply with the Commission’s ordinary schedule under 46 C.F.R. § 502.318(a).

Indeed, as counsels’ recent submissions demonstrate, they are well prepared to file their exceptions within the time period provided.

In *ZIM*, Complainant’s counsel sought only a 48-hour extension (Doc. 61) to file its 58-page Exceptions. (Doc 64). The Initial Decision (Doc. 60) entered in *ZIM* was 101 pages long (as opposed to 70 pages here) and involved 10,000 separate charges (as opposed to 3,000 here).

Counsel also needed no extra time to file its 57-page Exceptions to the Initial Decision entered in *SM Line Corp*. That decision was 62 pages long (Doc. 148) and involved 18,000 charges.

Yet here, the same counsel needs significantly more time, without offering a valid reason why.

As such, no good cause has been demonstrated justifying the relief sought by Complainant and there is no plausible basis to concluded that the submission was filed for any reason other than delay.

Notwithstanding the foregoing, in the utmost good faith and as a professional courtesy, the undersigned informed Complainant that it would not oppose a 7-day extension, for a total of 29 days, in exchange for an equal extension for Respondent’s response to the exceptions.<sup>1</sup>

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<sup>1</sup> Should the Commission grant any portion of Complainant’s extension request, as a matter of fairness Respondent requests an equivalent extension in which to file its opposition.

Dated: September 16, 2026

Respectfully submitted,

**SPECTOR RUBIN, P.A.**

By: /s/ Robert Borak  
Andrew R Spector, Esq.  
Robert M. Borak, Esq  
3250 Mary Street, Suite 405  
Miami, FL 33133  
Tel: (305) 537-2000  
Fax: (305) 537-2001  
[robert.borak@spectorrubin.com](mailto:robert.borak@spectorrubin.com)  
[andrew.spector@spectorrubin.com](mailto:andrew.spector@spectorrubin.com)  
***Counsel for Respondent,  
Flexport International LLC***

**CERTIFICATE OF SERVICE**

I **HEREBY CERTIFY** that a true and correct copy of the forgoing was served on  
September 16, 2026, via electronic mail, which shall notify all parties of record on this matter.

By: /s/ Robert Borak  
Robert M. Borak, Esq.